

SAMPLE CLAUSES TO CONSIDER INCLUDING WHEN RENTING TO CORPORATE RENTERS

Rental information:

Arrival date: _____ Departure date: _____ (30 day written notice is required to vacate)
Check-in time: 4:00pm Check-out time: 11:00am Extensions possible: _____
Deposit: \$ _____ (required to reserve unit) Departure fee: \$ _____ (payable upon move-in)
Rate monthly: \$ _____ (first month's rent payable in advance) No refunds for early departure or non arrival.
Maid service: \$ _____ per visit if requested
Pets: Yes or no _____ Pet fees: _____
Key Deposit \$ _____ There is a \$50 charge for any replacement and/or missing key or access card

Rental payments: 1st month's rent is due prior to arrival. Rent is then due on the 1st of each month. Late fee of ____% of invoice plus \$ ____ a day. Payments are made/charged in the following manner _____

Security deposit/credit card authorizations: A deposit and corporate letter of responsibility and a valid credit card are required. The undersigned as the owner of the credit card does hereby fully authorize management to charge against the designated credit card account all charges due and owing from this rental agreement at the option of owner/management. Qualified corporations must sign a letter of responsibility. Security deposits shall be returned to the tenant, or written accounting made for any portion retained, listing the exact reasons for the retention (missing items/damages, rents, late fees, unit charges, departure fees, excess utilities, phone charges, other charges due under this agreement and interest as due), together with the balance of the security deposit within sixty days after departure.

Partial month calculation: All rents are billed on a monthly basis. If your stay starts or ends creating a partial month, the daily rate will be calculated as follows: Monthly rate divided by 30 days or _____

Departure notification/extensions: A written 30-day departure notice must be received for all stays. If written notice by either party is not given at least 30-days prior to the termination of the lease, then a new month-to month tenancy shall be created subject to the same terms and conditions of this lease at a monthly rate of \$ _____ per month.

Departure service fee \$ _____. Departure fee will automatically be applied to your initial invoice. (Any excessive cleaning and unit damage will result in additional charges.)

Checkout procedure: Lock all doors upon departure. Make key drop off arrangements with _____. Failure to depart by 11:00am shall result in additional daily rent. Management is not responsible for items/mail left behind.

Parking: Not all units have parking and space is very specific for each property. Additional charges may be incurred for parking. Owner/management is not responsible for stolen or damaged vehicles. Your vehicle may be towed if not parked in designated parking space and may result in an additional charge ranging from \$50 to \$250 depending on the specific garage or towing service. Any parking cards, garage openers, etc. not returned will result in additional charges.

Rules & Regulations: Tenant shall comply with the specific covenants, conditions and restrictions applicable to the rental property and/or condominium association. Violation may result in fines and/or eviction.

Occupying tenants: The lease must include the names of each person who is authorized to occupy this property.

Utility allowance _____. Usage above this amount will be charged to your account:

Pets: If pets are permitted, for each pet, there is a \$500 pet security deposit and a \$300 non-refundable fee. Undisclosed pets will result in a minimum \$500 fee, plus an additional amount of _____ added to the monthly rental rate.

Smoking in unit: All units are absolutely no-smoking. Deposits may be forfeited and a minimum \$1500 fee assessed if tenant smokes inside the unit.

Emergencies: For maintenance emergencies or service call _____. If the emergency or needed maintenance is due to tenant negligence, applicable charges will be applied to your account.

RENTAL AGREEMENT – 3-STAR ADDENDUM

This addendum is part of the rental agreement entered into on this date _____, between the following parties,
RESIDENT(S): _____ and **OWNER / MANAGEMENT:** _____
RENTAL ADDRESS: _____.

1. **3-STAR RESIDENT BENEFITS:** As part of our 3 –Star Program, which rewards long-term residents, during the next _____ year(s), you will receive the following benefits as a resident in good-rental-standing. On your first, second and third anniversary dates, you will receive a choice of property upgrades. Examples of property upgrades may include:

_____.
In addition (if applicable), as part of the 3-Star Program, the following upgrade (in the Custom Home rental package): _____, will become your property after the _____ year of your rental term. Since this item will become your property, you the resident are responsible for maintenance and/or repair of the item(s). In addition, Management requires that an additional Upgrade deposit of \$ _____ be held for the first six months of this term. This deposit is completely refundable at the time of the first six-month home inspection, upon satisfactory inspection of the item.

2. **FREE UPGRADE REFERRAL:** The owner/management agrees to offer a free property upgrade once a year to any 3-Star Resident who recommends and refers just one qualified prospective resident to one of our rentals.
3. **MAJOR MAINTENANCE GUARANTEE:** 3-Star Residents understand and agree that the following major repairs are the responsibility of the Owner’s and Managers:

1. _____
2. _____
3. _____

The Owners/Managers agree to guarantee that these major repairs will be fixed within 72 hours after notification of the problem to Owner/Manager. Resident understands that if a major repair is not corrected within 72 hours after notification, Resident will receive FREE RENT on a prorated basis starting the fourth day after the day of notification until the problem is corrected. Residents further understand and agree that the 72-hour clock does not start ticking until after the Owner has been directly notified of the problem and provides confirmation of that acknowledgement to Resident. The maintenance guarantee will not be honored if the maintenance problem was caused by the Resident’s negligence, abuse, or fault. Resident also agrees that in order for the Owner to honor the guarantee, the Owner or Manager must be given access into the building, with the Resident’s permission, to correct the problem. Free rent will be awarded in the form of cash rebate following the next on-time rent received.

4. **FINANCIAL HARDSHIP ASSISTANCE:** Because unforeseen circumstances may occur during the rental term which may create difficulty for Resident to make timely rent payment, Resident agrees to work with Owner/management and permit direct contact from Owner/management with the following individuals, companies, or organizations for assistance in past-due rental payments. Please provide names and phone numbers of individuals who may be able to provide assistance for payment of rent should you need temporary financial assistance.

Emergency Contact _____ Phone _____

Parent or Cosigner _____ Phone: _____

Agency _____ Phone: _____

5. **FUTURE HOMEBUYER:** As part of the 3-Star Resident program, residents are offered the opportunity to work with management toward obtaining a home in the future. When a resident has resided in the property for a minimum of ____ months, and are ready to purchase a home from the owner/management or a broker or builder in our 3-Star network, money will be given toward the purchase price at closing on your behalf. The amount of money that will be given at closing is based on your performance during the time you reside at the property.

Each time a 3-Star Residents makes on-time payment, that adds \$____ to the amount that will be given at closing on your behalf. During your tenancy, the total accumulated amount to be given at closing will be referred to as the Future Homebuyers Account, which can only be used solely for the purchase of a house and is credited or paid out at time of real estate closing. The house the Resident may purchase and apply the Future Homebuyers Account towards can be selected from either the same residence in this agreement or a selected house owned or managed by the owner or management or a house from one of the builders or brokers who work in association with us.

Please note that the money total that will be given increases each month with every on-time payment received by the following due date _____. If, however, payment is received late, the total money accrued into the Homebuyers Account up to that point becomes null and void. The total starts again to accumulate with the next on-time rental payment. Residents further understand and agree that they are responsible for the following Property Upkeep requirements:

1. Responsible for handling all normal upkeep and minor repairs. (Owner is still responsible for all major repairs, unless of course repairs were caused by the residents or due to their negligence).
2. Responsible to pass semiannual property inspections.

By meeting those two Upkeep requirements, Residents will receive an additional \$_____ every 6 months (following each inspection) added toward their Future Homebuyers Account. Two property inspections are conducted yearly with a checklist provided to Residents in advance of inspections. Failure to handle minor upkeep or failure to pass a property inspection nullifies the total amount up to that point that you will be given up to the Resident's at closing.

6. **BUILD YOUR CREDIT REPUTATION:** A review of each Resident's performance is performed every six months and Owner will provide residents with a copy of a GOOD performance report when so earned. Good reports are earned by Residents who pay on time and follow ALL terms of the Rental Agreement. Residents can then give copies of their report to future landlords, loan officers, banks, and mortgage companies. These reports may be beneficial in helping you rent or buy a car or house in the future. Building your credit reputation may also help Residents participating in the Future Homebuyers Program. Please note: a poor payment performance and or violations of the rental agreement are also kept on file and made available to future landlords, banks, lenders and any other creditors who inquire, that residents may want to do business with in the future when seeking to buy a car, insurance, home or other large purchase. Any debts left owing by residents are also reported directly to all three major credit bureaus so that the debt will appear on your credit report. Therefore, it is important that Residents understand that the credit they establish during this tenancy (good or bad) can follow you for many years. Because of such importance of performances reported or filed, Resident will always be notified before a nonpayment, rental violation or debt is reported an/or filed, thereby giving the Resident an opportunity to immediately correct any poor performance before such action occurs.

7. **OTHER PROVISION:** _____

Resident's signature: _____ Date _____

Resident's signature: _____ Date _____

Owner's Manager's signature: _____ Date _____

HOUSE RULES ADDENDUM

This addendum is made part of the rental agreement entered into on this date _____, between the following parties, **RESIDENT(S):** _____ and **OWNER / MANAGEMENT:** _____, for the premises located at the following address: _____.

The policies and rules contained herein may be modified and new policies and rules adopted by owner or management, and shall become effective on the date indicated on the addendum, or thirty days after delivery of a copy of the amendment, or amended rules, to resident, whichever is later.

1. **AIR CONDITIONER/FURNACE FILTERS:** The filters should be cleaned or changed once a month. Dirty filters cause maintenance problems for us and higher electricity bills for you plus it reduces units cooling and heating capacity. There will be a \$_____ charge for all dirty filters or \$_____ per month if you would like for us to change them for you.
2. **ACTIONS OF GUESTS:** Residents are totally responsible for the actions of your guest(s), friend(s), family member(s) other occupant(s) and anyone who visits and enters your residence.
3. **ADDITIONAL APPLIANCES:** No air conditioners, washing machine, clothes dryer or any other appliances can be installed without permission of management. Additional monthly charge may apply.
4. **ALTERATIONS:** Resident shall not paint, wallpaper, or alter in any way the features of the premises without prior consent of the owner/management. Resident shall not use screws, fastening devices, large nails, or adhesive materials (including contact-type paper), place signs, displays, or other exhibits, on or in any portion of the premises without the written consent of the owner/management. Closet and cabinet shelves and drawers may be lined with plain paper only.
5. **CANDLES & COMBUSTIBLE SUBSTANCES:** The resident is prohibited from using candles or kerosene lamps without permission and residents are prohibited from using or keeping in their homes, garages or storage spaces any gasoline, explosives, inflammable or combustible materials.
6. **CARPETS CLEANED:** Resident agrees to have carpets cleaned at the end of the rental relationship.
7. **CAR WASHING:** Absolutely forbidden - \$25.00 fine if violated. Repairing cars should not be done on the premises. Broken down cars cannot be parked in the parking areas. If you have any kind of an oil leak, please repair immediately. It is very difficult to remove the grease from the concrete plus individuals walk in the spills and spread oil everywhere.
8. **COMMON GROUNDS:** In multi-units personal items with the exception of one or two plants are not to be left outside the apartments. It makes the apartment complex junky and it is a fire code violation.
9. **DECORATIONS:** Decorations shall be installed in such a way as not to damage substantially, the walls, floors, and carpets. No decorations shall be installed on or from the ceilings, doors, windows, their frames, or any existing cabinetry.
10. **ELECTRICAL OVERLOAD:** If the resident overloads an electrical circuit or blows a fuse, the resident will be charged for the problem to be corrected.
11. **EXTENDED ABSENCE:** Resident shall notify management of any extended absences (more than _____ days) from the premises. During extended absences by resident, owner or management will provide access to no other persons, unless expressly requested to do so by resident in writing. Management reserves the right to arrange for reasonable or emergency inspection during an extended absence.